

NHRC AND SHRC

PHRA EVOLUTION, STATUTORY IDENTITY – NHRC AND SHRC COMPOSITION – SECTION 12 FUNCTIONS, CIVIL-COURT – COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR – ARMED-FORCES PROCEDURE AND HUMAN – NHRC-SHRC JURISDICTION, OVERLAP AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure, the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

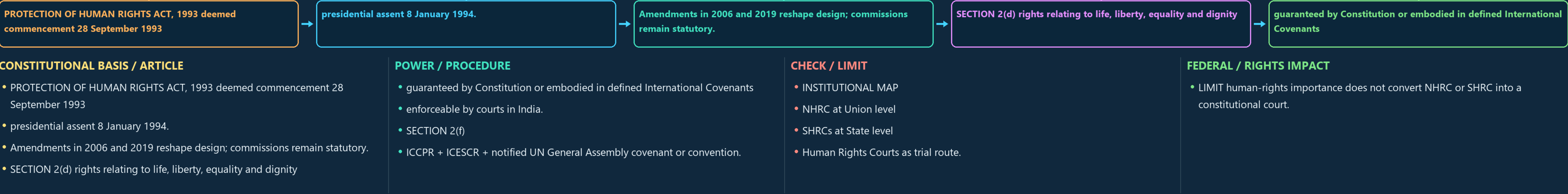
CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 PHRA EVOLUTION, STATUTORY IDENTITY AND THE ENFORCEABLE HUMAN-RIGHTS FIELD

PHRA EVOLUTION, STATUTORY IDENTITY AND THE ENFORCEABLE HUMAN-RIGHTS FIELD PROTECTION OF HUMAN RIGHTS ACT, 1993 DEEMED COMMENCEMENT 28 PRESIDENTIAL ASSENT 8 JANUARY 1994. AMENDMENTS IN 2006 AND 2019 RESHAPE DESIGN; COMMISSIONS REMAIN

SECTION 2(D) RIGHTS RELATING TO LIFE, LIBERTY, EQUALITY AND GUARANTEED BY CONSTITUTION OR EMBODIED IN DEFINED INTERNATIONAL COVENANTS ENFORCEABLE BY COURTS IN INDIA. SECTION 2(F)

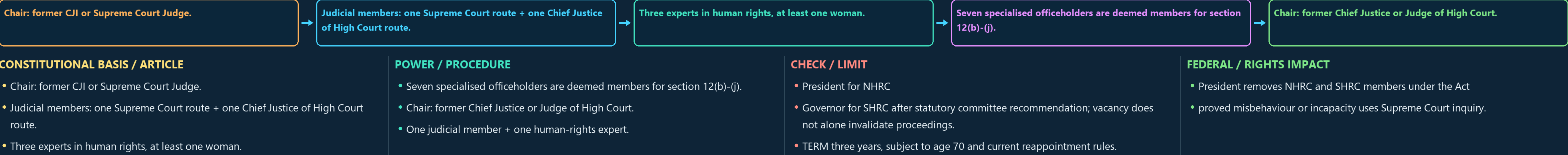


01

STAGE 01 NHRC AND SHRC COMPOSITION, APPOINTMENT, TENURE AND REMOVAL

NHRC AND SHRC COMPOSITION, APPOINTMENT, TENURE AND REMOVAL FORMER CJI OR SUPREME COURT JUDGE. JUDICIAL MEMBERS ONE SUPREME COURT ROUTE + ONE CHIEF JUSTICE OF THREE EXPERTS IN HUMAN RIGHTS, AT LEAST ONE WOMAN.

SEVEN SPECIALISED OFFICEHOLDERS ARE DEEMED MEMBERS FOR SECTION 12(B)-(J). FORMER CHIEF JUSTICE OR JUDGE OF HIGH COURT. ONE JUDICIAL MEMBER + ONE HUMAN-RIGHTS EXPERT.

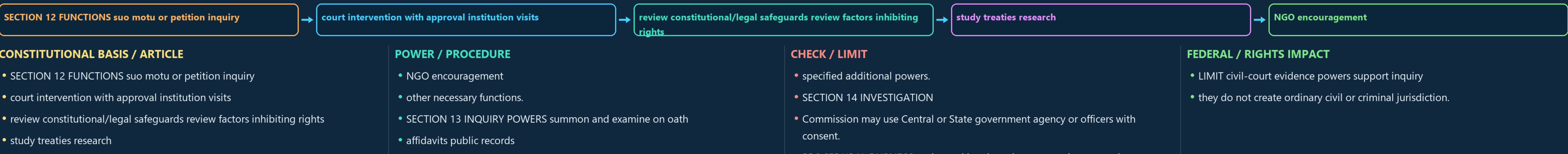


02

STAGE 02 SECTION 12 FUNCTIONS, CIVIL-COURT POWERS AND INVESTIGATIVE SUPPORT

SECTION 12 FUNCTIONS, CIVIL-COURT POWERS AND INVESTIGATIVE SUPPORT SECTION 12 FUNCTIONS SUO MOTU OR PETITION INQUIRY COURT INTERVENTION WITH APPROVAL INSTITUTION VISITS REVIEW CONSTITUTIONAL/LEGAL SAFEGUARDS REVIEW FACTORS INHIBITING RIGHTS STUDY TREATIES RESEARCH

NGO ENCOURAGEMENT OTHER NECESSARY FUNCTIONS. SECTION 13 INQUIRY POWERS SUMMON AND EXAMINE ON OATH

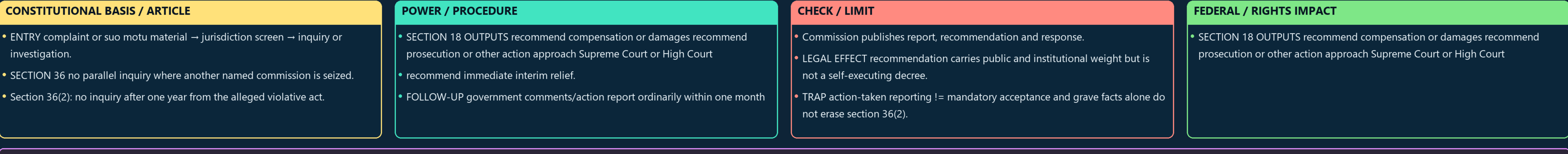


03

STAGE 03 COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR AND LEGAL EFFECT

COMPLAINT-TO-RECOMMENDATION PROCEDURE, ONE-YEAR BAR AND LEGAL EFFECT ENTRY COMPLAINT OR SUO MOTU MATERIAL JURISDICTION SCREEN INQUIRY OR INVESTIGATION. SECTION 36 NO PARALLEL INQUIRY WHERE ANOTHER NAMED COMMISSION SECTION 36(2)

NO INQUIRY AFTER ONE YEAR FROM THE ALLEGED VIOLATIVE SECTION 18 OUTPUTS RECOMMEND COMPENSATION OR DAMAGES RECOMMEND PROSECUTION

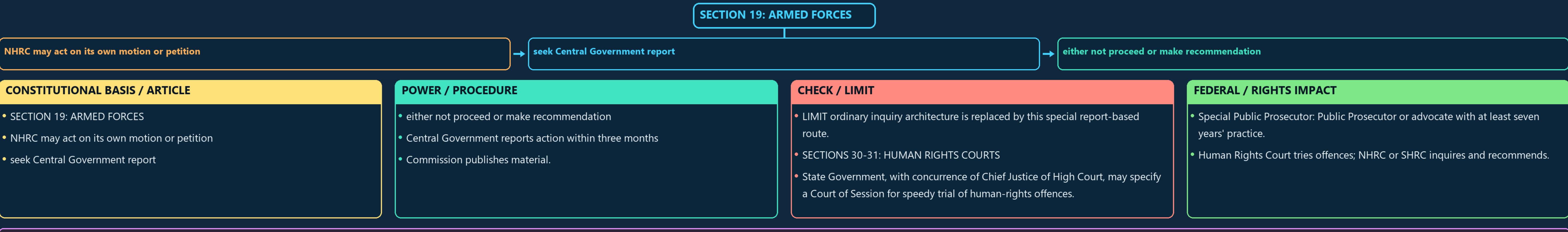


04

STAGE 04 ARMED-FORCES PROCEDURE AND HUMAN RIGHTS COURTS: TWO SPECIAL ROUTES

ARMED-FORCES PROCEDURE AND HUMAN RIGHTS COURTS TWO SPECIAL ROUTES SECTION 19 ARMED FORCES NHRC MAY ACT ON ITS OWN MOTION OR PETITION SEEK CENTRAL GOVERNMENT REPORT EITHER NOT PROCEED OR MAKE RECOMMENDATION

CENTRAL GOVERNMENT REPORTS ACTION WITHIN THREE MONTHS

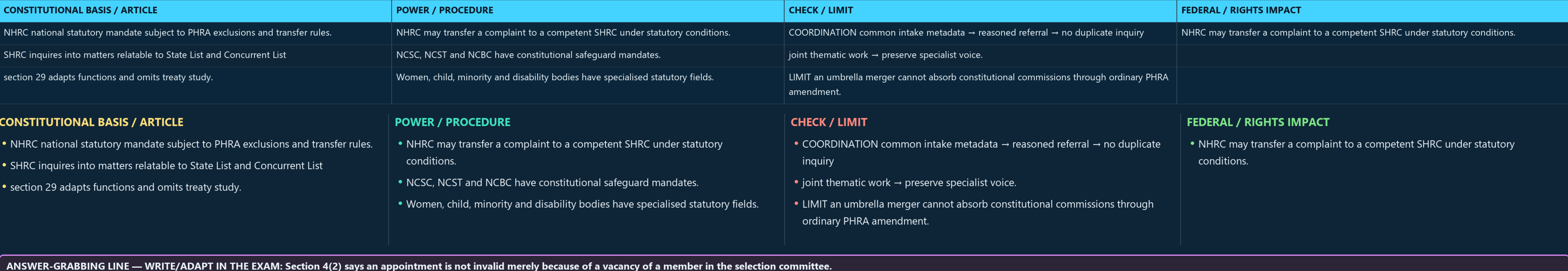


05

STAGE 05 NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION

NHRC-SHRC JURISDICTION, OVERLAP AND SPECIALISED-COMMISSION COORDINATION NHRC NATIONAL STATUTORY MANDATE SUBJECT TO PHRA EXCLUSIONS AND SHRC INQUIRES INTO MATTERS RELATABLE TO STATE LIST AND SECTION 29 ADAPTS FUNCTIONS AND OMITTS TREATY STUDY.

NHRC MAY TRANSFER A COMPLAINT TO A COMPETENT SHRC NCSC, NCST AND NCBC HAVE CONSTITUTIONAL SAFEGUARD MANDATES. WOMEN, CHILD, MINORITY AND DISABILITY BODIES HAVE SPECIALISED STATUTORY COORDINATION COMMON INTAKE METADATA

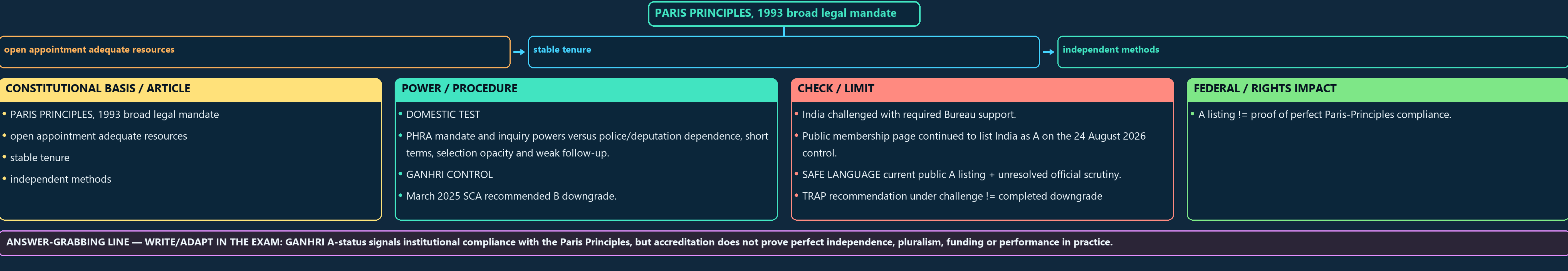


06

STAGE 06 PARIS PRINCIPLES, GANHRI ACCREDITATION AND CURRENT-STATUS DISCIPLINE

PARIS PRINCIPLES, GANHRI ACCREDITATION AND CURRENT-STATUS DISCIPLINE PARIS PRINCIPLES, 1993 BROAD LEGAL MANDATE OPEN APPOINTMENT ADEQUATE RESOURCES STABLE TENURE INDEPENDENT METHODS DOMESTIC TEST

PHRA MANDATE AND INQUIRY POWERS VERSUS POLICE/DEPUTATION DEPENDENCE, SHORT GANHRI CONTROL

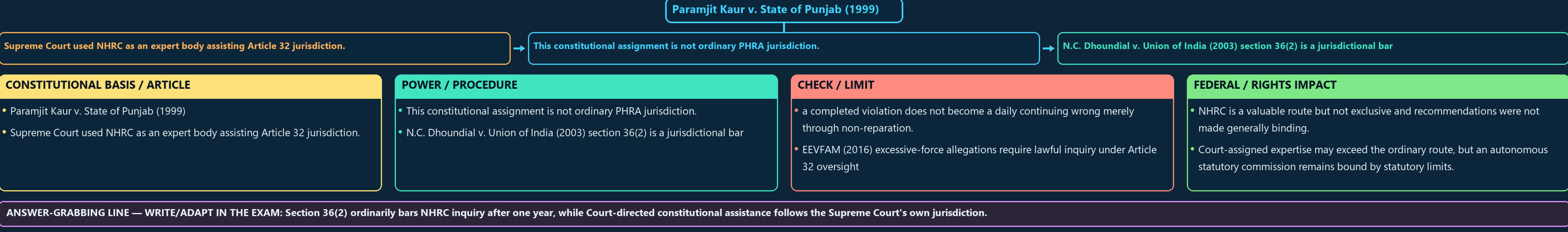


07

STAGE 07 THREE HUMAN-RIGHTS CASE-LAW BOUNDARIES

THREE HUMAN-RIGHTS CASE-LAW BOUNDARIES PARAMJIT KAUR V. STATE OF PUNJAB (1999) SUPREME COURT USED NHRC AS AN EXPERT BODY ASSISTING THIS CONSTITUTIONAL ASSIGNMENT IS NOT ORDINARY PHRA JURISDICTION. N.C. DHOONDIAL V. UNION OF INDIA (2003) SECTION 36(2)

A COMPLETED VIOLATION DOES NOT BECOME A DAILY CONTINUING EEVFAM (2016) EXCESSIVE-FORCE ALLEGATIONS REQUIRE LAWFUL INQUIRY UNDER ARTICLE NHRC IS A VALUABLE ROUTE BUT NOT EXCLUSIVE AND

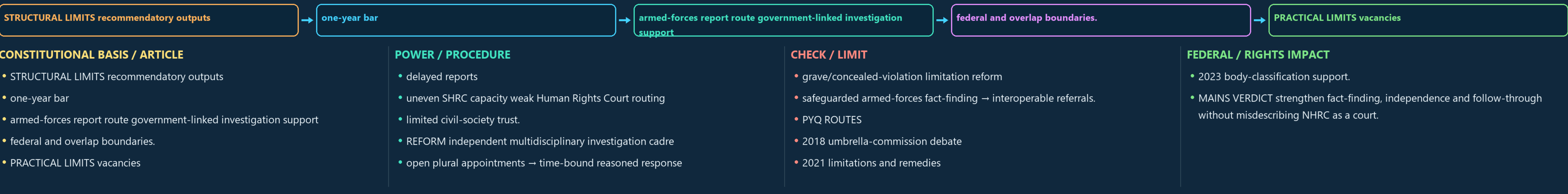


08

STAGE 08 ENFORCEMENT LIMITS, REFORM, PYQ ROUTES AND QUALIFIED SYNTHESIS

ENFORCEMENT LIMITS, REFORM, PYQ ROUTES AND QUALIFIED SYNTHESIS STRUCTURAL LIMITS RECOMMENDATORY OUTPUTS ONE-YEAR BAR ARMED-FORCES REPORT ROUTE GOVERNMENT-LINKED INVESTIGATION SUPPORT FEDERAL AND OVERLAP BOUNDARIES. PRACTICAL LIMITS VACANCIES

DELAYED REPORTS UNEVEN SHRC CAPACITY WEAK HUMAN RIGHTS COURT ROUTING



E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT PART A — NHRC PART B — SHRC APPOINTED BY THE PRESIDENT ON A 6-MEMBER COMMITTEE'S RECOMMENDATION PM (HEAD), LS SPEAKER REMOVED BY THE PRESIDENT ; FOR PROVED MISBEHAVIOUR/INCAPACITY POWERS OF A CIVIL COURT ; HAS ITS OWN

TWO BIG LIMITATIONS

OPTIONAL DOCTRINE / CASE

- PART A — NHRC
- PART B — SHRC
- Appointed by the President on a 6-member committee's recommendation: PM (head), LS Speaker,
- Removed by the President ; for proved misbehaviour/incapacity, a Supreme Court inquiry is required

ADVANCED LIMIT

- Powers of a civil court ; has its own investigating staff.
- CAUTION: Two big limitations: (1) cannot inquire into a matter 1 year old ; (2) recommendations are
- CAUTION: Armed-forces limitation: in respect of the armed forces, it can only seek a report from the Centre and
- Jurisdiction: only State List (II) & Concurrent List (III) subjects; not if the NHRC/another

COMPARATIVE NUANCE

- NOT: NHRC/SHRC are constitutional bodies → statutory (1993 Act).
- NOT: NHRC recommendations are binding → advisory only ; NHRC cannot punish or grant relief.
- NOT: NHRC can inquire into any old case → only within 1 year of the violation.
- NOT: SHRC members are removed by the Governor → removed only by the President.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.